

Greater Noida Industrial Development Area Building (Third Amendment) Regulations, 2016

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Greater Noida Industrial Development Area Building (Third Amendment) Regulations, 2016

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Greater Noida Industrial Development Area Building (Third Amendment) Regulations, 2016

Rule GREATER-NOIDA-INDUSTRIAL-DEVELOPMENT-AREA-BUILDING-THIRD-AMENDMENT-REGULATIONS-2016 of 2016

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Greater Noida Industrial Development Area Building (Third Amendment) Regulations, 2016

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No. 726/77-4-16-284 BHA.-91, dated 4.4.2016, published in the U.P. Gazette, Extraordinary, Part 4, Section (Kha), dated 4.4.2016, pp. 7-12. - In exercise of the powers under sub-section (1) of Section 9 of the Uttar Pradesh Industrial Area Development Act, 1976 (U.P. Act No. 6 of 1976) read with clause (d) of sub-section (2) of the said section and Section 21 of the Uttar Pradesh General Clauses Act, 1904 (U.P. Act No. 1 of 1904) and all other powers enabling it in this behalf and with the previous approval of the State Government, the Greater Noida Industrial Development Authority

hereby makes the following regulations with a view to amending the Greater Noida Industrial Development Area Building Regulations, 2010.

1.

Short title and commencement.

(1)

These regulations shall be called the Greater Noida Industrial Development Area Building (Third Amendment) Regulations, 2016.

(2)

They shall come into force with effect from the date of their publication in the Gazette.

2.

Amendment of Regulation 24.2.1(4).

- In the Greater Noida Industrial Development Area Building Regulations, 2010 hereinafter referred to as said regulation in sub-regulation 24.2 for Clause 1(4) the following clause shall be substituted, namely -

"24.2.1(4) All the common facilities prescribed below will have to be provided and shall be counted in the prescribed FAR of Group Housing Shops and community facilities other than mentioned in No. 24.2.1(5) 12 as per population norms or specified in the earlier lease deed. In case of plots where minimum population required for provision of convenient shopping is not achieved then -

(a)

Area for shopping and commercial activities equivalent to 1.0 per cent permissible Far of the plot area shall be allowed.

(b)

Minimum four kiosks of 4 sq. m. carpet area and two shops of 10 sq. m. carpet area shall be provided mandatorily.

(c)

Maximum height of shops and kiosks shall be 4 meter from floor to ceiling.

(d)

However shops may be allowed as integral part of group housing building on the ground floor."

3.

Amendment of Regulation 24.6.

- In the said regulations, for Regulation 24.6 the following regulation shall be substituted, namely -

"Sl. No.

Use

Maximum permissible Ground coverage

Maximum permissible FAR

Maximum height in meters

1

Sports Complex/ Stadium

20%

0.40 + (0.40 -purchasable)**

24.0

2

Amusement Complex

20%

0.40 + (0.40 -purchasable)**

24.0

3

Recreational Green

20%

0.40 + (0.40 -purchasable)**

24.0 for recreational green facilities in 75% of

area. No limit in residential & commercial area wherever such activities are permissible

4

Institutional Green

35%

0.80 + (0.20 purchasable only for Institutional activity)

24.0

5

Sport City*

30%

1.50

24.0 M (for Sports & related facilities) No

limit (only in residential & Commercial area)

Note. - 1. *The authority shall determine land-use pattern, mix of permissible activities like residential, commercial etc. Planning norms and other required conditions in the scheme as required from time to time for the development of sports city project, However, minimum 70 per cent land shall be used for sports and related facilities. Unutilized part of FAR in the 70 per cent area, after providing all the required sports and related facilities may be allowed for residential purpose.

2. **In case of purchase of additional FAR the allottee shall provide dense plantation within the plot in Minimum 25% of the plot area where no construction shall be permitted. Additional purchasable FAR beyond 0.2 up to 0.4 shall be admissible to allotments after June 2014."

4.

Amendment of Regulation 24.8.

- In the said regulations, in Regulation 24.8 for sub-regulation (14) in the following sub-regulation shall be substituted, namely -

"24.8.14 The applicant who shall construct Green Building on a plot of 5000 sq. m. and above may be allowed an additional FAR of 5% of the permissible/availed FAR (excluding) additional 15% FAR for services, free of cost, provided that the applicant fulfils the following conditions -

(i)

The Building/Building design is rated by Leadership in Energy and Environmental Design (LEED)/Indian Green Building Council (IIGBC) as Gold or Platinum; or

(ii)

The Building/Building design is rated by GRIHA (Green Rating for Integrated Habitat Assessment) developed by Government of India as 4 star or 5 star;

(iii)

The Building has been completed fulfilling the parking and landscaping Norms of the prevailing Regulations;

(iv)

The applicant has made sufficient provisions for using the additional FAR.

Explanation. - The applicant has to submit a rating certificate regarding green building from Leadership in Energy and Environmental Design (LEED)/GRIHA (Green Rating for Integrated Habitat Assessment)/Indian Green Building Council (IGBC) and submit a certificate of compliance of green building after every five years. In case he fails to submit this certificate the authority, after giving him one month notice may charge the compounding fees of the FAR given free of cost at the rate of 200% of the cost of purchasable FAR."

5.

Amendment of Regulation 27.7.

- In the said regulations, in Regulation 27.7 for clause (a) the following clause shall be substituted, namely -

"(a) Parking space to be provided for motor vehicles, shall not be less than 20 square meter in open area, and in covered area 30 square meter.

(b)

Parking space for vehicles shall be provided as per Table 5 annexed to these regulations."

6.

Amendment of Regulation 27.9.

- In the said regulations, in Regulation 27.9 for clause (a)(i) and (ii) the following clause shall be substituted, namely -

"(i) Development charge shall be charged only on commercial conversions up to a maximum conversion of 50% of plot

area, which shall be levied as follows.

(ii)

On roads of ROW up to 12 metres 25% of prevailing residential rate revised from time to time."

7.

Amendment of Regulation 28.5.

- In the said regulations, in Regulation 28.5 for clause (i) the following clause shall be substituted, namely -

"(i) On roads of ROW up to 12 metres 25% of prevailing residential rate revised from time to time."

8.

Amendment of Regulation 28.6.

- In the said regulations, in Regulation 28.6 for clause (iii) the following clause shall be substituted, namely -

"(iii) Provisions of parking, loading and unloading spaces -

(a)

Parking space to be provided for motor vehicles, shall not be less than 20 square meter in open area, and in covered area 30 square meter.

(b)

Parking space for other vehicles shall be provided as per Table 5."

9.

Amendment of Regulation 29.2(ix).

- In the said regulations, in Regulation 29.2 for clause (ix) the following clause shall be substituted, namely -

"(ix)(a) Additional proportionate residential units shall be allowed on purchasable FAR for Group Housing.

(b)

For group housing plots allotted before 2009 the maximum units which shall be permitted in between the units allowed on purchasable FAR for Group housing and currently prevailing 2100 pph density shall be allowed on purchasable basis as per following conditions -

(1)

If the FAR is purchased then the allottee shall get proportionate density with respect to the FAR purchased without any extra cost.

(2)

If the allottee wants 2100 ppha density then the allowable rate shall be 1% for every 5% increase in density on the current allotment or reserved price of the Authority (whichever is more) beyond the proportionate density which the allottee shall get on purchase of FAR.

(3)

Purchasable density shall be allowed only in cases where physical and social infrastructure required for additional population as per norms available."

10.

Insertion of new Regulation 29.5.

- In the said regulations, after Regulation 29.4 the following regulation shall be substituted, namely -

"29.5 Additional purchasable FAR provisions for Metro alignment. - Addition to purchasable FAR in one kilometre influence area along either side of Noida Greater Noida Metro Corridor (29 km long) with be allowed in additional (sic addition) to maximum permissible FAR as per following table -

Sl. No.

Land Use

Additional

purchasable

FAR

1

Residential Group Housing

0.5

2

Commercial

0.2

3

Institutional

0.2-0.5

4

Recreational Green

0.2

5

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0.5".

11.

Amendment of Regulation 30.2(1).

- In the said regulations, in sub-regulation 30.2 in clause (i) the following clause shall be substituted, namely -

"30.2 In plots larger than 10,000 sq. mtrs., the basement shall be allowed up to minimum setback of 6 mtrs. There will be no restriction on the number of levels of basement subject to mechanical ventilation as per provisions in National Building Code-2005, water proofing and structural safety. Evergreen trees shall have to be planted in setback as per landscaping norms of the regulation."

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